

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

COURTNEY TINGLE, SR.,

Plaintiff,

-against-

**THE CITY OF NEW YORK, P.O.
TRISTAN LATIMORE (Shield No. 10021),
and JOHN DOE #1,**

Defendants.

Index No.:

SUMMONS

Plaintiff designates New York County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
April 4, 2019

Rickner PLLC

By:



Rob Rickner

233 Broadway Suite 2220
New York, New York 10279
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
New York City law Department
100 Church Street
New York, New York 10007

P.O. TRISTAN LATIMORE (Shield No. 10021)
JOHN DOE #1,
Patrol Borough
Manhattan South
Times Square Unit
230 E. 21st Street
New York NY, 10010

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK****COURTNEY TINGLE, SR.,**

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT**THE CITY OF NEW YORK, P.O.
TRISTAN LATIMORE (Shield No. 10021),
and JOHN DOE #1,**

Defendants.

Plaintiff Courtney Tingle, Sr., by his attorneys, RICKNER PLLC, complaining of the Defendant, respectfully alleges, upon information and belief:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department ("NYPD") who arrested Courtney Tingle, Sr. ("Plaintiff") without probable cause, physically assaulted him causing injury, and prosecuted him without probable cause and based on false statements. This violated Plaintiff's rights under the Constitution of the United States, the Constitution of the State of New York, and the common laws of the State and New York.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiffs rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, Plaintiff's rights under Article 1, Section 12 of the Constitution of the State of New York, and the common laws of the State and New York.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Pursuant to New York State General Municipal Law § 50-e, Plaintiff filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2018PI029949.

5. Plaintiff appeared for a hearing under New York State General Municipal Law § 50-h on December 18, 2018.

6. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

7. Venue is properly laid in the Supreme Court of the State of New York, County of New York, because the Plaintiff's claims arose in the County of New York.

8. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

9. Plaintiff is, and was at all times relevant to this action, a resident of Kings County in the State of New York.

10. Defendant the City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department that acts as its agent in the area of law enforcement and for which it is ultimately responsible.

11. Defendant the City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

12. Defendant P.O. Tristan Latimore (Shield No. 10021) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times

described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

13. C.O. Latimore is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

14. C.O. Latimore is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

15. Defendant P.O. John Doe #1 (Shield No. Unknown) was at all relevant times described herein an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity. During all times relevant to this action, P.O. Doe was P.O. Latimore's partner.

16. The true name and shield number of Defendant P.O. Doe is not currently known to the Plaintiff. However, he is an employee or agent of the NYPD. Accordingly, he is entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officer as a defendant in an amended pleading once the true name and shield number is known and (b) that the Law Department should immediately begin preparing P.O. Doe's defense in this action.

17. Collectively P.O. Latimore and P.O. Doe are referred to as the "Individual Defendants."

18. At all times relevant herein, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of NYPD and otherwise performed and engaged in conduct incidental to the performance

of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

19. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

STATEMENT OF FACTS

20. On March 24, 2018, Plaintiff was lawfully in the vicinity of 42nd Street and 8th Avenue in Manhattan.

21. Plaintiff was detained by the Individual Defendants without his consent.

22. The Individual Defendants struck Plaintiff repeatedly, splitting open the skin under his left eye.

23. The Individual Officers arrested Plaintiff without probable cause and took him to a precinct.

24. At the precinct, Plaintiff was detained for several hours and P.O. Latimore gave him a summons that falsely accused him of disorderly conduct.

25. Plaintiff was forced to attend court as a result.

26. On August 24, 2018, Plaintiff went to trial and the Hon. Charlotte Davidson found that, even if accepted as true, P.O. Latimore's testimony was not sufficient to establish disorderly conduct, and the case was dismissed.

**FIRST CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

27. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

28. The Individual Defendants used physical force against Plaintiff.

29. Plaintiff's seizure and detention at the hands of the Individual Defendants was made in the absence of probable cause. The unwanted physical contact was therefore unlawful and unconstitutional.

30. Even assuming arguendo that Plaintiff's arrest was lawful, the Individual Defendants engaged in the use of force that was excessive, malicious, gratuitous, and with the intention of inflicting physical and emotional harm to plaintiff.

31. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of his civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

32. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

**SECOND CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

33. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

34. The Individual Defendants restrained and arrested Plaintiff without probable cause.

35. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of his civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

36. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

**THIRD CLAIM FOR RELIEF:
PROSECUTION WITHOUT PROBABLE CAUSE UNDER 42 U.S.C. § 1983
AGAINST P.O. LATIMORE**

37. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

38. P.O. Latimore initiated a prosecution, through a summons, against Plaintiff without probable cause and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

39. That by virtue of the aforementioned acts by P.O. Latimore, Plaintiff was deprived of his civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and P.O. Latimore therefore is liable to Plaintiff for damages under 42 U.S.C. § 1983.

40. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

**FOURTH CLAIM FOR RELIEF:
MALICIOUS PROSECUTION AGAINST P.O. LATIMORE
AND THE CITY OF NEW YORK**

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

42. P.O. Latimore initiated a prosecution, through a summons, against Plaintiff without probable cause, and with malice, and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

43. The City of New York is liable for P.O. Latimore's tortious acts, committed within the scope of his employment, under the doctrine of respondeat superior.

44. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

**FIFTH CLAIM FOR RELIEF:
DENIAL OF A FAIR PROSECUTION UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

45. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

46. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

47. P.O. Latimore initiated a prosecution, through a summons, that contained false statements.

48. That by virtue of the aforementioned acts by P.O. Latimore, Plaintiff was deprived of his civil rights guaranteed under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution to be free from prosecution based on false statements, and P.O. Lattimore therefore is liable to Plaintiff for damages under 42 U.S.C. § 1983.

49. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

**SIXTH CLAIM FOR RELIEF:
FAILURE TO INTERVENE UNDER 42 U.S.C. § 1983
AGAINST THE INDIVIDUAL DEFENDANTS**

50. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

51. The Individual Defendants failed to intervene to prevent, end or report the unlawful and unconstitutional conduct to which Plaintiff was subjected despite the fact that they had opportunities to do so.

52. The Individual Defendants thereby displayed deliberate indifference to Plaintiffs rights, including Plaintiffs right to be free from unreasonable and unlawful searches and seizures.

53. That by virtue of the aforementioned acts by the Individual Defendants, Plaintiff was deprived of his civil rights guaranteed under the Constitution of the United States, including his right under the Fourth and Fourteenth Amendments to the United States Constitution, and the Individual Defendants therefore are liable to Plaintiff for damages under 42 USC § 1983.

54. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

**SEVENTH CLAIM FOR RELIEF:
VIOLATION OF ARTICLE I, § 12 OF THE NEW YORK STATE CONSTITUTION
AGAINST THE INDIVIDUAL DEFENDANTS AND THE CITY OF NEW YORK**

55. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

56. That by virtue of the aforementioned acts, the Individual Defendants are liable to Plaintiff for violating his right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

57. The City of New York is liable for the conduct of the Individual Defendants under the doctrine of respondeat superior.

58. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

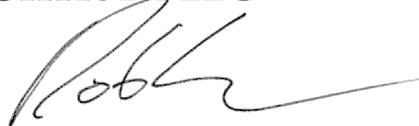
WHEREFORE, Plaintiff Courtney Tingle, Sr. demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
April 4, 2019

Rickner PLLC

By:



Rob Rickner

233 Broadway Suite 2220
New York, New York 10279
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

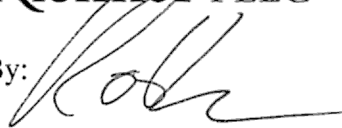
ATTORNEY'S VERIFICATION

I, Rob Rickner, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff Courtney Tingle, Sr.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
April 4, 2019

Rickner PLLC

By: 

Rob Rickner

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